



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 6250 (EXTENSION)
SECOND REVISION April 24, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6250 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 30, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Marilyn E. Morris
for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

September 10, 1996
(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

McDonnell Douglas Aerospace
St. Louis, MO

July 1, 1996

Pending Renewal
1-Denial

DEC 23 1996



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400 Seventh Street, S.W.
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DOT-E 6250
(THIRD REVISION)

1. The Department of Defense, Washington, D.C., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages of partially dis-assembled aircraft with explosives components (ejection seat and canopy related devices) remaining installed for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of explosives in non-DOT Specification packages and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of party to this exemption.

McDonnell Douglas Aerospace, St Louis, MO - PTE-1

2. BASIS. This exemption is based on Military Traffic Management Command's application dated July 22, 1996, submitted in accordance with 49 CFR 107.109. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.107.

McDonnell Douglas Aerospace application dated July 1, 1996.

3. HAZARDOUS MATERIALS (Descriptor and class). Partially dis-assembled aircraft with installed explosive components which may consist of rocket motors, classed as Class 1 (Division 1.1 thru 1.3); explosive power devices, class 1 (Division 1.2 and 1.3); and small arms ammunition, class 1 (Division 1.4) ammunition.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific shipping name as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.62, 173.61, 176.83, and 177.848.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel, barge, and motor vehicle.

7. SAFETY CONTROL MEASURES.

a. Each aircraft must be prepared for shipment (cocooned, crated or skidded as prescribed in Air Force Technical Order or Drawings as applicable) in such manner that it provides reasonable security against tampering with installed explosive items or arming systems. Safety device must be in place and secured to the maximum extent possible (including blocking or banding where determined to be advantageous) to prevent inadvertent or accidental arming.

b. Each aircraft package must be properly marked to identify all explosive components, and their locations, involved in the shipment.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each vessel (or towing vessel) used to transport packages covered by this exemption.

b. For shipments by water, the shipper or agent shall notify the USCG Captain of the Port in the port area through which the shipment is to be made of the name of the vessel on which the shipment is to be made, and of the time, date and place of loading and unloading. When the initial notification is given in a port area, it must be accompanied by a copy of this exemption, addressed to the attention of that Captain of the Port.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

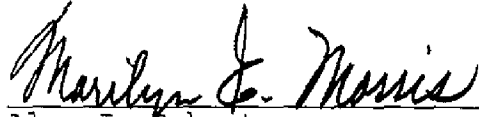
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE: August 30, 1998.

Issued at Washington, D.C.:



for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

December 23, 1996
(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C.,
20590. Attention: DHM-31.

The original of this exemption is on file at the above office.
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Dist: FHWA, USCG